

MASTER SERVICES AGREEMENT

Synthetic Legal Document for RAG / Retrieval / Risk Evaluation

Agreement Date: 15 January 2026

Effective Date: 01 February 2026

Customer: Meridian Retail Technologies Pvt. Ltd.

Service Provider: Northstar Cloud Systems Pvt. Ltd.

Initial Term: 24 months

Governing Law: Laws of India

IMPORTANT: This is a deliberately synthetic evaluation contract. It contains realistic legal language and intentionally varied risk patterns so an AI document-analysis system can be tested. It is not legal advice and is not intended for execution.

1. Definitions

- 1.1 “Affiliate” means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party.
- 1.2 “Confidential Information” means non-public business, technical, financial, operational, security, customer, pricing, product, and contractual information disclosed by one Party to the other, whether in written, electronic, oral, or visual form.
- 1.3 “Customer Data” means data submitted to the Services by or on behalf of Customer, including transaction data, employee data, customer records, and usage information.
- 1.4 “Services” means the hosted software, APIs, support services, implementation services, and related documentation provided by Provider under an applicable Order Form.
- 1.5 “Order Form” means a document signed by the Parties describing the Services, fees, quantities, implementation scope, or other commercial terms.
- 1.6 “Business Day” means a day other than a Saturday, Sunday, or public holiday in Bengaluru, Karnataka.

2. Scope of Services

- 2.1 Provider shall provide the Services described in each Order Form and shall use commercially reasonable efforts to perform the Services in accordance with the applicable documentation.
- 2.2 Customer may use the Services for its internal business purposes and for the benefit of its Affiliates identified in an Order Form.
- 2.3 Provider may modify non-material features of the Services from time to time. Provider shall not materially reduce the core functionality of the Services during the Initial Term without providing Customer with reasonable prior notice.
- 2.4 Professional services, including migration, configuration, integration, and training, shall be performed according to the milestones stated in the applicable Order Form.

3. Fees, Invoicing and Taxes

- 3.1 Customer shall pay the fees stated in each Order Form. Unless an Order Form states otherwise, invoices are payable within thirty (30) days from the invoice date.
- 3.2 Provider may charge interest on undisputed overdue amounts at the lower of 1.5% per month or the maximum rate permitted by applicable law.
- 3.3 Customer may withhold amounts disputed in good faith, provided that Customer gives written notice describing the dispute within fifteen (15) days after receipt of the relevant invoice.
- 3.4 Fees are exclusive of applicable taxes, duties, levies, and governmental charges, except taxes imposed on Provider’s net income.
- 3.5 Provider may increase recurring subscription fees by up to eight percent (8%) on each annual renewal by providing at least sixty (60) days’ written notice.

4. Customer Responsibilities

- 4.1 Customer shall provide timely access, information, personnel, credentials, and decisions reasonably required for Provider to perform implementation services.
- 4.2 Customer is responsible for maintaining the confidentiality of its account credentials and for all activity conducted through credentials assigned to Customer, except to the extent caused by Provider's security failure.
- 4.3 Customer shall not use the Services to violate applicable law, infringe third-party rights, distribute malware, or attempt to gain unauthorized access to systems.
- 4.4 Customer shall maintain appropriate internal policies governing its employees' use of the Services.

5. Data Protection and Privacy

- 5.1 Provider shall process Customer Data solely to provide, secure, maintain, and improve the Services, except where otherwise permitted by this Agreement or applicable law.
- 5.2 Provider shall implement reasonable technical and organizational safeguards designed to protect Customer Data against unauthorized access, alteration, disclosure, or destruction.
- 5.3 Provider shall notify Customer without undue delay and, where reasonably practicable, within seventy-two (72) hours after confirming a Security Incident involving unauthorized access to Customer Data.
- 5.4 Provider shall reasonably assist Customer with data-subject requests, regulatory inquiries, and legally required impact assessments relating to Customer Data, subject to reimbursement of reasonable documented costs for extraordinary assistance.
- 5.5 Customer authorizes Provider to use aggregated and de-identified information derived from use of the Services for analytics, service improvement, benchmarking, and development, provided that such information does not identify Customer or an individual.
- 5.6 Upon termination, Provider shall delete or return Customer Data within thirty (30) days, except for copies retained where required by law or maintained in routine backup systems, which shall be isolated and deleted according to Provider's normal retention cycle.

6. Information Security

- 6.1 Provider shall maintain an information security program appropriate to the nature of the Services and the sensitivity of Customer Data.
- 6.2 Provider shall conduct vulnerability assessments at least annually and shall maintain documented access-control, incident-response, business-continuity, and disaster-recovery procedures.
- 6.3 Provider shall maintain encryption in transit using industry-standard protocols and encryption at rest for production databases containing Customer Data.
- 6.4 Provider shall restrict privileged administrative access to authorized personnel and shall use multi-factor authentication for administrative access where technically supported.
- 6.5 Provider shall make available to Customer, upon reasonable request and subject to confidentiality restrictions, current independent security assessment reports relevant to the Services.
- 6.6 Customer may conduct one remote security questionnaire and one reasonable audit per contract year, provided that such activity does not unreasonably disrupt Provider's operations.

7. Intellectual Property

7.1 Provider retains all right, title, and interest in the Services, software, documentation, templates, tools, methodologies, and know-how developed independently of Customer.

7.2 Customer retains all right, title, and interest in Customer Data.

7.3 Subject to Customer's payment obligations, Customer grants Provider a limited, non-exclusive license to use Customer Data solely as necessary to provide the Services and perform Provider's obligations under this Agreement.

7.4 Any configuration scripts, connectors, or custom materials specifically developed for Customer under an Order Form shall be owned by Customer upon full payment, excluding Provider's pre-existing materials, generic components, and underlying tools.

7.5 Provider shall not knowingly incorporate third-party materials into Customer-owned deliverables in a manner that materially restricts Customer's ability to use those deliverables for its intended business purpose.

8. Confidentiality

8.1 Each receiving Party shall use the disclosing Party's Confidential Information only to perform or receive the Services and shall protect it using at least reasonable care.

8.2 Confidential Information does not include information that the receiving Party can demonstrate was lawfully known without restriction before disclosure, independently developed without use of the information, or lawfully received from a third party without a confidentiality obligation.

8.3 A receiving Party may disclose Confidential Information to employees, professional advisers, contractors, and Affiliates who have a need to know and are bound by confidentiality obligations.

8.4 If disclosure is legally compelled, the receiving Party shall, where legally permitted, provide prompt notice and reasonable cooperation to seek protective treatment.

8.5 Confidentiality obligations shall continue for five (5) years after termination, except that trade secrets shall remain protected for so long as they qualify as trade secrets under applicable law.

9. Service Levels and Support

9.1 Provider targets 99.9% monthly availability for the production Services, excluding Scheduled Maintenance, Emergency Maintenance, Customer-caused outages, force majeure events, and third-party network failures outside Provider's reasonable control.

9.2 Scheduled Maintenance shall ordinarily be communicated at least forty-eight (48) hours in advance and, where practicable, performed outside Customer's peak operating hours.

9.3 Critical support incidents shall receive an initial response within one (1) hour. High-priority incidents shall receive an initial response within four (4) hours.

9.4 Service credits described in the applicable Order Form are Customer's sole monetary remedy for failure to meet the availability target, except where the failure results from Provider's gross negligence, willful misconduct, or repeated material service-level failures.

10. Warranties

10.1 Provider warrants that the Services will materially conform to the applicable documentation during the subscription term.

10.2 Provider warrants that it will perform professional services in a professional and workmanlike manner using personnel with appropriate skill and experience.

10.3 Customer's exclusive remedy for breach of the foregoing warranties is, at Provider's option, re-performance of the affected Services or a refund of the fees paid for the affected period.

10.4 EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT, THE SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, AND PROVIDER DISCLAIMS ALL IMPLIED WARRANTIES TO THE MAXIMUM EXTENT PERMITTED BY LAW.

11. Indemnification

11.1 Provider shall defend Customer against a third-party claim alleging that the Services, when used as permitted under this Agreement, infringe an Indian patent, copyright, or trademark, and shall pay damages finally awarded or settlements approved by Provider.

11.2 Customer shall defend Provider against third-party claims arising from Customer Data, Customer's unlawful use of the Services, or materials supplied by Customer that infringe third-party rights.

11.3 The indemnified Party shall promptly notify the indemnifying Party of a claim, provide reasonable cooperation, and allow the indemnifying Party to control the defense and settlement, provided that no settlement may admit liability on behalf of the indemnified Party without its consent.

11.4 Provider has no obligation under Section 11.1 for claims arising from modification of the Services by anyone other than Provider, use contrary to documentation, or combination with products not supplied or approved by Provider.

12. Limitation of Liability

12.1 TO THE MAXIMUM EXTENT PERMITTED BY LAW, PROVIDER'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE FEES ACTUALLY PAID BY CUSTOMER TO PROVIDER DURING THE THREE (3) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

12.2 The limitation in Section 12.1 shall not apply to Customer's payment obligations.

12.3 Neither Party shall be liable for indirect, incidental, special, punitive, exemplary, or consequential damages, or for loss of profits, revenue, goodwill, or anticipated savings, except to the extent such damages form part of a third-party claim subject to indemnification.

12.4 Notwithstanding Sections 12.1–12.3, Provider's liability for breach of confidentiality, infringement indemnification obligations, and violations of applicable data-protection obligations shall be subject to a separate aggregate cap equal to two (2) times the fees paid or payable during the twelve (12) months preceding the event.

13. Term and Termination

13.1 This Agreement begins on the Effective Date and continues for an Initial Term of twenty-four (24) months unless terminated earlier in accordance with this Agreement.

13.2 After the Initial Term, the Agreement automatically renews for successive twelve (12) month periods unless either Party provides at least ninety (90) days' written notice of non-renewal.

13.3 Either Party may terminate this Agreement for material breach if the breaching Party fails to cure the breach within thirty (30) days after receiving written notice.

13.4 Customer may terminate an affected Order Form immediately upon written notice if Provider suffers a Security Incident that materially compromises Customer Data and Provider fails to implement a commercially reasonable remediation plan within fifteen (15) days after notice.

13.5 Provider may suspend access immediately where reasonably necessary to prevent a security threat, unlawful activity, or material harm to the Services, provided Provider gives notice as soon as reasonably practicable.

13.6 If Customer terminates an Order Form for Provider's uncured material breach, Provider shall refund prepaid fees attributable to the unused portion of the terminated period.

13.7 If Customer terminates for convenience before the end of the Initial Term, Customer shall pay all unpaid fees accrued through the termination date plus an early termination charge equal to fifty percent (50%) of the remaining committed subscription fees.

14. Transition and Data Return

14.1 For thirty (30) days following termination, Provider shall make Customer Data available for export through the standard export functionality.

14.2 At Customer's written request, Provider may provide reasonable transition assistance for up to forty (40) hours at Provider's then-current professional-services rates.

14.3 Provider shall not intentionally withhold Customer Data solely because a payment dispute exists, except for undisputed amounts overdue by more than sixty (60) days.

15. Non-Solicitation

15.1 During the Term and for twelve (12) months thereafter, neither Party shall knowingly solicit for employment an employee of the other Party who was materially involved in performing or receiving the Services.

15.2 General advertisements, unsolicited applications, and recruitment through agencies not specifically targeting the other Party's employees shall not constitute solicitation.

16. Insurance

16.1 Provider shall maintain commercially reasonable insurance appropriate to the Services, including technology errors and omissions coverage and cyber liability coverage.

16.2 Upon reasonable request, Provider shall provide certificates of insurance evidencing applicable coverage, subject to customary confidentiality restrictions.

17. Compliance and Audit

17.1 Each Party shall comply with applicable laws relating to its performance under this Agreement.

17.2 Provider shall maintain records reasonably necessary to demonstrate compliance with material contractual security obligations.

17.3 Customer may request one compliance audit annually on thirty (30) days' written notice where Customer has a reasonable basis to believe Provider is materially non-compliant with this Agreement.

17.4 Audit rights shall not require Provider to disclose another customer's confidential information, privileged information, source code, or security information that would materially increase operational risk.

18. Force Majeure

18.1 Neither Party shall be liable for delay or failure caused by events beyond its reasonable control, including natural disasters, war, terrorism, civil unrest, widespread internet failures, governmental action, epidemics, or utility failures.

18.2 The affected Party shall promptly notify the other Party and use commercially reasonable efforts to mitigate the impact.

18.3 Force majeure does not excuse Customer's obligation to pay undisputed amounts already due.

19. Dispute Resolution and Governing Law

19.1 The Parties shall first attempt in good faith to resolve any dispute through escalation to senior management. Either Party may initiate escalation by written notice, and the Parties shall meet within ten (10) Business Days.

19.2 If a dispute is not resolved within thirty (30) days after escalation, it shall be finally resolved by arbitration seated in Bengaluru, Karnataka, under the Arbitration and Conciliation Act, 1996.

19.3 The arbitration shall be conducted by a sole arbitrator appointed by mutual agreement of the Parties. If the Parties cannot agree within fifteen (15) days, the arbitrator shall be appointed in accordance with applicable law.

19.4 The language of arbitration shall be English. The award shall be final and binding, subject to rights available under applicable law.

19.5 This Agreement is governed by the laws of India, without regard to conflict-of-law principles.

20. Notices

20.1 Notices relating to termination, breach, disputes, or legal claims must be in writing and delivered by recognized courier or email with confirmation of receipt to the notice contacts identified in the applicable Order Form.

20.2 Operational notices, maintenance notifications, and routine support communications may be delivered through the support portal or designated email channels.

21. Assignment

21.1 Neither Party may assign this Agreement without the other Party's prior written consent, except that either Party may assign the Agreement without consent to an Affiliate or to a successor in connection with a merger, reorganization, or sale of substantially all assets, provided the assignee assumes the assigning Party's obligations.

21.2 Provider may not assign this Agreement to an entity whose primary business directly competes with Customer without Customer's prior written consent.

22. Miscellaneous

22.1 This Agreement, together with all Order Forms and incorporated schedules, constitutes the entire agreement between the Parties regarding its subject matter.

22.2 If there is a conflict, the following order of precedence applies: (a) signed amendment; (b) Order Form; (c) Data Processing Addendum; (d) this Agreement; and (e) other documentation.

22.3 No amendment is effective unless in writing and signed by authorized representatives of both Parties.

22.4 If any provision is held unenforceable, the remaining provisions remain effective and the Parties shall negotiate a valid replacement provision that most closely reflects the original commercial intent.

22.5 Failure to enforce a provision is not a waiver of future enforcement.

22.6 This Agreement may be executed electronically and in counterparts.

SIGNATURES

The Parties have caused this Agreement to be executed by their duly authorized representatives.

For Meridian Retail Technologies Pvt. Ltd.	For Northstar Cloud Systems Pvt. Ltd.
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____

EVALUATION DESIGN NOTES — DO NOT USE AS CONTRACT TERMS

The following notes are intentionally included after the signature section to make the file useful for evaluation only. A production benchmark should remove this section before testing document-only grounding, because it contains answer hints.

Known evaluation targets

- Document type: Master Services Agreement (MSA).
- Parties: Meridian Retail Technologies Pvt. Ltd. and Northstar Cloud Systems Pvt. Ltd.
- Effective date: 01 February 2026.
- Initial term: 24 months.
- Non-renewal notice: 90 days.
- Invoice payment term: 30 days.
- Annual renewal fee increase: up to 8% with 60 days' notice.
- Security Incident notification target: within 72 hours after confirmation.
- Customer termination right for qualifying Security Incident after 15 days without reasonable remediation.
- Convenience termination charge: 50% of remaining committed subscription fees.
- General liability cap: fees paid during preceding 3 months.
- Separate cap for confidentiality, infringement indemnification, and data-protection violations: 2x fees paid/payable during preceding 12 months.
- Service availability target: 99.9% monthly, subject to exclusions.
- Critical support response: 1 hour.
- High-priority support response: 4 hours.
- Confidentiality survival: 5 years; trade secrets remain protected while qualifying as trade secrets.
- Data deletion/return: within 30 days after termination, subject to exceptions.
- Arbitration seat: Bengaluru, Karnataka; governing law: India.

Suggested benchmark questions

- Who are the parties to the agreement and what is the effective date?
- What type of legal document is this?
- What is the initial contract term?
- How many days' notice is required for non-renewal?
- What is the standard invoice payment period?
- By how much can Provider increase recurring subscription fees at annual renewal?
- What is the Security Incident notification requirement?
- When can Customer terminate an affected Order Form because of a Security Incident?
- What is the early termination charge if Customer terminates for convenience?
- What is Provider's general liability cap?
- Are confidentiality and data-protection claims subject to the same liability cap as ordinary claims?
- What is the monthly service availability target?

- How quickly must Provider initially respond to a Critical support incident?
- How long do confidentiality obligations survive termination?
- Who owns Customer Data?
- Who owns custom materials developed specifically for Customer after full payment?
- Can Provider use aggregated and de-identified information?
- What are Customer's audit rights?
- Where will disputes be arbitrated?
- What law governs the agreement?
- What happens to Customer Data after termination?
- Which clauses present the highest financial exposure to Customer?
- Which clause would you recommend negotiating first and why?
- Compare the general liability cap with the special liability cap.
- What conditions must be met before either Party can terminate for material breach?